



CHAPTER lv.

An Act to amend the Nitrate Railways Company Limited A.D. 1901.
(Conversion of Shares) Act 1891. [2nd July 1901.]

WHEREAS by the Nitrate Railways Company Limited (Conversion of Shares) Act 1891 it was amongst other things provided that the Company upon application as therein mentioned might and should from time to time convert its ordinary shares into preferred converted ordinary shares and deferred converted ordinary shares and create and issue such converted shares subject to the provisions and with the incidents therein mentioned :

And whereas seventy-one thousand two hundred and eighty-five ordinary shares of the Company have in accordance with the provisions of the said recited Act been converted into a like number of preferred converted ordinary shares and deferred converted ordinary shares and the share capital of the Company is at present represented by ninety-four thousand three hundred and fifteen ordinary shares and seventy-one thousand two hundred and eighty-five preferred converted ordinary shares and seventy-one thousand two hundred and eighty-five deferred converted ordinary shares :

And whereas since the passing of the said Act through the competition of other railways the Company has been compelled to reduce and has reduced its freights and is not now earning sufficient to pay any dividend on its deferred converted ordinary shares and it is expedient that the said Act should be amended in manner hereinafter mentioned :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

A.D. 1901.

Company
may re-
convert
preferred
and deferred
shares into
ordinary
shares.

1. The Company upon application as hereinafter mentioned may and shall from time to time re-convert any portion of the converted shares into ordinary shares and consolidate and re-issue such ordinary shares subject to the following provisions (that is to say) :—

- (1) Any holder of preferred converted ordinary shares who shall hold also deferred converted ordinary shares may at any time by application in writing require the Company to re-convert the whole or any portion of such shares held by him and being an equal number of each class into ordinary shares and to issue the same to him as ordinary shares and the Company may from time to time make rules with respect to the notice to be given of such application and the date on which such re-conversion shall take place and subject to such rules the Company shall issue the said shares in accordance with such application and the shares so issued shall be deemed for all purposes to be fully paid up ordinary shares :
- (2) Such ordinary shares shall only be issued in substitution for an amount of preferred converted ordinary shares and of deferred converted ordinary shares each equal to the amount of ordinary shares so to be issued :
- (3) The certificates for the converted shares shall before such re-conversion be delivered up to the Company and shall be cancelled by the Company and a certificate for the ordinary shares substituted therefor shall be issued in exchange by the Company :
- (4) The Company may make such charges in respect of such re-conversion and the consequent issue of certificates as will relieve them from expense and afford them a reasonable remuneration for the trouble incurred in connexion therewith and such charges shall be payable by the holders of the converted shares applying for such re-conversion :
- (5) Re-converted ordinary shares shall be held on the same trusts and subject to the same charges and liabilities as those on and subject to which the converted shares in substitution for which the same are issued were held immediately before the re-conversion and every deed or other instrument and every testamentary or other disposition of or affecting such converted shares shall take effect with reference to the whole or a proportionate part as the case may be of the re-converted shares.

2. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director and manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

A.D. 1901.

Copy of
Act to be
registered.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

3. To every copy of the memorandum and articles of association of the Company supplied after the passing of this Act to any member under the provisions of section 9 of the Companies Act 1862 there shall be annexed a copy of this Act which for the purposes of that section shall be treated as part of the memorandum and articles of association of the Company.

Copy of
Act to be
supplied to
members on
request.

4. The costs charges and expenses preliminary to and of and incidental to the preparing of and applying for and the obtaining and passing of this Act shall be paid by the Company.

Costs of
Act.

5. This Act may be cited as the Nitrate Railways Company Limited Act 1901.

Short title.

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